

Amendment No. 1 to SB1241

Gardenhire  
Signature of Sponsor

**AMEND Senate Bill No. 1241\***

**House Bill No. 1360**

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 37-1-102(b)(1), is amended by adding the following as a new subdivision:

(C) A person under eighteen (18) years of age witnesses either abuse of another child in the person's immediate family or household, or domestic abuse, as defined in § 36-3-601, of another member of the person's immediate family or household;

SECTION 2. Tennessee Code Annotated, Title 37, Chapter 2, Part 4, is amended by adding the following as a new section:

Notwithstanding another law to the contrary, if a child has been removed from the custody of a parent or legal guardian due to a finding of abuse, as defined in § 37-1-102, and placed in foster care with the department or in the care of an agency as provided in § 37-2-403, then reunification with the parent must not occur unless the parent has achieved sufficient progress on the parent's permanency plan responsibilities to make reunification safe and the child has received any mental health counseling deemed necessary for reunification.

SECTION 3. Tennessee Code Annotated, Section 37-2-403(a), is amended by adding the following as a new subdivision:

(8) The permanency plan for a child in foster care as a result of abuse or neglect that includes as a permanency goal the return of the child to the parent must include in the parent's statement of responsibilities a requirement that the parent complete

appropriate services to address domestic violence, if the reason for the child's placement in foster care included witnessing or being subjected to domestic abuse by the parent.

SECTION 4. Tennessee Code Annotated, Section 37-5-105, is amended by adding the following as a new subdivision:

(18) By January 31, 2026, and each year semiannually thereafter, report to the chair of the judiciary committee of the senate, and the chairs of the committees of the house of representatives having jurisdiction over judiciary matters and matters related to children and family affairs, the number of children who were removed into foster care due to allegations of domestic abuse. The report must include information on the number of children who were returned home, the number of children who remained in the custody of the department, and other outcomes.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.